

VRMC shall prepare and e-file a proposed order conforming to this ruling and attach a copy of the Court's tentative ruling.

10. 9:00 AM CASE NUMBER: C25-00714
CASE NAME: PETER DRAGOLOVICH VS. BROOKE BUCHANAN
HEARING IN RE: PLAINTIFF'S DEMURRER TO CROSS-COMPLAINT
FILED BY: DRAGOLOVICH, PETER L
TENTATIVE RULING:

By stipulation of the Parties and Counsel, this hearing is continued to September 24, 2026. No appearance is required on March 4, 2026.

11. 9:00 AM CASE NUMBER: C25-02066
CASE NAME: INFOTECHTION LIMITED VS. BRIAN TUEMMELER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TUEMMELER, BRIAN
TENTATIVE RULING:

Defendants Brian Tuemmler and Infotechtion, LLC's demurrer to the first amended complaint is **continued to April 15, 2026**. No appearance is required at the March 4, 2026 hearing.

Defendants included a declaration claiming that they met the meet and confer requirements for a demurrer. Defendants' attorney sent an e-mail to Plaintiff's attorney regarding the initial complaint. Plaintiff's attorney responded, agreeing to make some changes. Plaintiff's counsel then filed a FAC without providing Defendant's attorney a draft in advance. Defendants' attorney states that FAC did not cure all the claim deficiencies in the complaint. Defendants' attorney then concludes "I took the filing of the First Amended Complaint in this form to indicate voluntarily resolution as to the outstanding deficiencies could not reasonably be reached and demurrer was appropriate. In light of this course of correspondence, I believe Defendants meet-and-confer obligations under CCP §430.41 have been met." (Garrett dec. ¶13.)

Before every demurrer is filed, the moving party must engage in a meet and confer with the opposing party in person, by telephone or by video conference. (Code of Civil Procedure section 430.41.) There is no indication that the parties met in person, by telephone or by video conference regarding the original complaint. Further, Defendants were required to engage in a new meet and confer process after the FAC was filed. Defendants did not comply with the meet and confer requirements. This matter is being continued to allow the parties time to properly meet and confer in person, by telephone or by video conference.

In addition, both the moving and opposing memoranda violated the Rules of Court. Defendants filed a 15-page brief without the required tables. (California Rules of Court, rule 3.1113(f).) Plaintiff filed an 18-page brief, which is beyond the 15-page limit. (California Rules of Court, rule 3.1113(d).) This matter is also being continued to allow the parties to comply with the Rules of Court.

The Court sets the following schedule:

1. The parties must engage in a meet and confer regarding the FAC in person, by telephone or by video conference no later than March 18.
2. Defendants shall file and serve a declaration showing that the meet and confer occurred and addressing whether the parties' reached agreement on any of the issues no later than March 25.
3. Defendants shall file and serve an amended moving brief that includes the required table of contents and authorities by March 25.
4. Plaintiffs shall file and serve an amended opposition that is limited to 15 pages by March 25. Plaintiffs shall limit their amendments to shortening their arguments and shall not include new arguments in their brief.

12. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: QUASH DEFENDANT CHEVRON U.S.A.'S NOTICE OF SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS TO THIRD PARTY**

FILED BY: RITZ, DR. BEATE

TENTATIVE RULING:

On February 19, 2026, Defendant Chevron U.S.A. Inc. withdrew the subject and filed a Notice of Withdraw of Subpoena with the court. This hearing is **vacated**. The case management conference scheduled for March 5, 2026 is confirmed. No appearance is required at the hearing on March 4, 2026.

13. 9:00 AM CASE NUMBER: MSC21-01391

CASE NAME: JFP-AG/SAN RAMON VS RM 15 SAFE CORP

HEARING ON SUMMARY MOTION FILED BY DEFENDANTS RM 15 SAFE CORP (RM 15) AND SAN RAMON HANNIBAL, LLC

FILED BY:

TENTATIVE RULING:

The Court continues the hearing on this motion to March 18, 2026 at 9:00 a.m., to be heard along with Plaintiffs' motion for summary judgment, or in the alternative, summary adjudication. No appearance is required at the March 4, 2026 hearing.